

		Constructive Fraud under Civil Code section 3439.05 against Defendants Brian Nelson and Stacey Nelson. The amendments assert a new theory of liability based upon the same facts and circumstances alleged in the original complaint. Further, no party has pointed to any way in which Defendants were misled or prejudiced. In fact, Defendants have not filed an opposition or otherwise responded to the motion. Thus, they have waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Finally, Plaintiff has complied with the requirements of California Rules of Court, rule 3.1324. Therefore, the court will grant the motion. Plaintiff shall give notice of this ruling.
3	Patel vs. Quality Escrow, Inc. 30-2026-01568098	<u>Motion to Intervene</u> Proposed Intervenor Marsha Starr's; Ronald R. Jimenez's; Michael A. Kucharski's; The Entrust Group, Inc.'s; Thomas A. Summer's; and Richard J. Walter's and Dawn-Michelle Walter's Motion to Intervene GRANTED on the condition that, within 7 days of this ruling, Proposed Intervenor's: 1) File and serve a properly signed Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene, or 2) Provide evidence that the original Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene was signed and maintained in compliance with Rule 2.257(b). Provided Proposed Intervenor's meet that condition, they shall file and serve the Verified Proposed Complaint in Intervention, attached as Exhibit G to the Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene, within 30 days of this ruling.

	<u>Pending Motion</u> Marsha Starr, Trustee of the Marsha Starr Trust; Ronald R. Jimenez, Trustee of the Ronald R. Jimenez Trust DTD 11/3/1998; Michael A. Kucharski, Trustee of the Michael A. Kucharski Family Trust Dated 11-23-10; The Entrust Group, Inc. FBO Richard Joseph Walter Account #52-00805; Thomas A. Summer, Trustee of the Thomas A. Summer Trust Dated 10/31/13; and Richard J. Walter and Dawn-Michelle Walter, Trustees of the Richard J. and Dawn-Michelle Walter Trust Dated June 26, 1998, move to intervene as defendants in this action. <u>Standard for Intervention</u> A non-party, who is referred to as an “intervenor,” may become a party to an action or proceeding between other persons by: (1) Joining a plaintiff in claiming what is sought by the complaint; (2) Uniting with a defendant in resisting the claims of a plaintiff; or (3) Demanding anything adverse to both a plaintiff and a defendant. (Code. Civ. Proc., § 387, subd. (b).) The non-party must request leave to intervene from the court “by noticed motion or ex parte application,” which “shall include a copy of the proposed complaint in intervention or answer in intervention and set for the grounds upon which intervention rests.” Code. Civ. Proc., § 387, subd. (c).) The court must grant leave to intervene if either of the following requirements are met: (A) A provision of law confers an unconditional right to intervene; or (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties.
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		(Code. Civ. Proc., § 387, subd. (d)(1).) This is referred to as mandatory intervention. The court may grant leave to intervene, at its discretion, "if the [non-party] has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code. Civ. Proc., § 387, subd. (d)(2).) This is referred to as permissive intervention. In general, the party seeking to intervene must have a direct and immediate interest in the outcome of the litigation (i.e., he or she must stand to gain or lose by direct operation of the judgment). (See <i>Fireman's Fund Ins. Co. v. Gerlach</i> (1976) 56 Cal.App.3d 299, 303-305.) "A person has a direct interest justifying intervention in litigation where the judgment in the action of itself adds to or detracts from his legal rights without reference to rights and duties not involved in the litigation." (<i>Continental Vinyl Prods. Corp. v. Mead Corp.</i> (1972) 27 Cal.App.3d 543, 549.) In addition, a motion or application for leave to intervene must include a copy of the proposed complaint or answer in intervention. (Code Civ. Proc. § 387, subd. (c); see <i>Sutter Health Uninsured Pricing Cases</i> (2009) 171 Cal.App.4th 495, 513 [affirming denial of leave to intervene where proposed intervenor did not submit proposed complaint in intervention].) In general, Section 387 should be construed liberally in favor of intervention. (See <i>Simpson Redwood Co. v. State of California</i> (1987) 196 Cal.App.3d 1192, 1201.) In considering whether to exercise the court's discretion to permit intervention, the court considers whether intervention will enlarge the issues raised by the original parties, and whether the reasons for intervention outweigh any opposition by the existing parties. (<i>Truck Ins. Exch. v. Superior Court</i> (1997) 60 Cal.App.4th 342, 346.) Whether intervention should be allowed in a particular case "is best determined by a consideration of the facts of that case" and the decision is ordinarily left to the sound discretion of the trial court. (<i>Fireman's Fund Ins. Co. v. Gerlach, supra</i>, 56 Cal.App.3d 299, 302.) Here, Proposed Intervenor submit evidence that after the borrower defaulted, the Proposed Intervenor completed a non-judicial foreclosure sale of property that is the subject of this case (Property). (See Decl. of
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	Anthony Silva, Esq. in Supp. of Mot. to Intervene (Silva Decl.), ¶ 3.) Proposed Intervenor also establish that a Trustee's Deed Upon Sale was recorded on July 21, 2026, vesting title to the Property in the Proposed Intervenor. (See Silva Decl., ¶ 4, Exh. E.) As a result, the Proposed Intervenor have a direct interest in the Property. (See Silva Decl., ¶ 2.) Proposed Intervenor also show that disposition of this action may impair their ability to protect their interest in the Property. The evidence shows that on June 12, 2026, Plaintiffs recorded a <i>lis pendens</i> against the Property that may interfere with Proposed Intervenor ownership interest and their ability to sell the Property. (See Silva Decl., ¶ 5, Exh. F.) In addition, the Civil Procedure Code requires that a nonparty with an interest in real property that is affected by a <i>lis pendens</i> "shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge." (Code Civ. Proc., § 405.30.) Thus, intervention is necessary for the Proposed Intervenor, as current title holders, to seek expungement of the <i>lis pendens</i> affecting the Property. Her, the motion is timely as the Proposed Intervenor acted shortly after acquiring title and after Plaintiffs declined to withdraw the <i>lis pendens</i>. (See Silva Decl., ¶¶ 4, 6-9, Exh.s A-C, E.) Proposed Intervenor have complied with all the procedural requirements for this motion, including submitting a proposed complaint in intervention setting forth the grounds for intervention. (See Silva Decl., ¶ 10, Exh. G.) Finally, no existing party contends that it can adequately represent the interest of Proposed Intervenor as the current title holders of the Property or that it will be prejudiced by the intervention. In fact, no current party to this action has filed an opposition or otherwise responded to the motion. Thus, they have waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see <i>DuPont</i>
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		<i>Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566 [holding that failure to challenge contention in brief results in the concession on that issue].) Therefore, the Proposed Intervenor has met the requirements for mandatory intervention, and in the alternative, permissive intervention. The court will grant the motion. <u>Unsigned Declaration</u> However, the Declaration of Anthony P. Silva, Esq. in Support of Motion to Intervene that was filed with the court is unsigned. A document signed under penalty of perjury and filed electronically is deemed signed only if the declarant either signed the document electronically in compliance with rule 2.257 or physically signed a printed copy before filing. (See Code Civ. Proc., § 1010.6, subd. (e)(2)(B); Cal. Rules of Court, rule 2.257(b).) If the latter procedure was used, the electronic filer must maintain the original signed declaration and make it available for inspection and copying upon request. (Cal. Rules of Court, rule 2.257(b)(2).) Here, the record does not establish whether Anthony Silva physically signed an original declaration before it was electronically filed. Accordingly, Proposed Intervenor must either file and serve a properly signed declaration or establish at the hearing that the original declaration was signed and maintained in compliance with Rule 2.257(b). If Proposed Intervenor fails to do so, the motion will be denied. Proposed Intervenor shall give notice of this ruling.
4	Thibodeau vs. Knowlton Manor Homeowners Association 30-2025-01511020	<u>Motion to Quash</u> Cross-Defendant 810 Baker Street, LLC's Motion to Quash Service of Cross-Complaint is taken OFF CALENDAR pursuant to the Notice of Withdrawal of 810 Baker Street, LLC's Motion to Quash Service of Cross-Complaint filed September 17, 2026 (ROA #78.)